

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2734

By: Kendrix

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 540, which relates to obstruction of justice; clarifying scope of certain prohibited act; providing an exception; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 540, is amended to read as follows:

Section 540. A. Any person who willfully delays or obstructs any public officer in the discharge or attempt to discharge any duty of his or her office, is, upon conviction, guilty of a misdemeanor.

B. Nothing in this section shall preclude a person from recording the activity of law enforcement in a public area, as long as the recording activity does not delay or obstruct the law enforcement agent in his or her duties.

C. Inquiries by a person being stopped, detained, or arrested by a law enforcement officer or by a bystander who is observing another person being stopped, detained, or arrested by a law

enforcement officer, shall not be deemed obstruction of justice,
unless such inquiries by the person or bystander are purposefully
intended to hinder, delay, or obstruct the authority of the law
enforcement officer in discharging his or her duties.

SECTION 2. This act shall become effective November 1, 2025.

60-1-12141 GRS 01/16/25